

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Russo	Team: Squad #10	CCRB Case #: 202007102	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/21/2020 5:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/4/2022	Precinct: 113		
Date/Time CV Reported Fri, 10/23/2020 2:12 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 10/23/2020 2:12 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Daniel Gukelberger	04901	948350	INT CIS
2. POM Daniel Ward	21748	947596	INT CIS
3. DT3 Adam Jangel	07569	925708	INT CIS
4. PO James Holder	18361	951823	INT CIS

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Daniel Gukelberger	Abuse: Detective Daniel Gukelberger searched § 87(2)(b)'s vehicle.	A . Exonerated
B . PO James Holder	Abuse: Police Officer James Holder searched § 87(2)(b)'s vehicle.	B . Exonerated
C . POM Daniel Ward	Abuse: Daniel Ward searched § 87(2)(b)'s vehicle.	C . Miscellaneous - Subject Retired
D . DT3 Adam Jangel	Abuse: Detective Adam Jangel searched § 87(2)(b)'s vehicle.	D . Miscellaneous - Subject Retired

Case Summary

On October 23, 2020, § 87(2)(b) filed this complaint with the CCRB via the On-line website. On August 4, 2021, this case was reassigned from Investigator Zajakowski to Investigator Russo for closure.

On October 21, 2020, at approximately 5:30 p.m., at § 87(2)(b) in Queens, Detective Daniel Gukelberger, Detective Adam Jangel, Police Officer Daniel Ward, and Police officer James Holder, all of the Intel Criminal Section, conducted a search of § 87(2)(b)'s vehicle without his presence, § 87(2)(e) (**Allegations A and B: Abuse of Authority- Vehicle Search, exonerated**) (**Allegations C and D: Abuse of Authority- Vehicle Search, Miscellaneous-Subject Retired**). § 87(2)(b)'s wife, § 87(2)(b) was present for this incident. The officers recovered marijuana and paraphernalia, which was vouchered at the stationhouse. § 87(2)(b)'s vehicle was left on scene.

There were no arrests made or summonses issued during this incident.

The investigation obtained body-worn camera footage from Det. Gukelberger (**BR01, BR02**), and Det. Jangel (**BR03, BR04**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Daniel Gukelberger searched § 87(2)(b)'s vehicle.

Allegation (B) Abuse of Authority: Police Officer James Holder searched § 87(2)(b)'s vehicle.

Allegation (C) Abuse of Authority: Daniel Ward searched § 87(2)(b)'s vehicle.

Allegation (D) Abuse of Authority: Detective Adam Jangel searched § 87(2)(b)'s vehicle.

PO Gukelberger's BWC (**BR01, BR02**) documents his entire involvement in the search of § 87(2)(b)'s vehicle. At the 01:10 mark, Det. Gukelberger approaches the silver Nissan, which has its driver side window rolled down. Det. Gukelberger opens the driver's side door and places his knee on the seat, entering the vehicle. He picks up a grey duffle bag on the floor of the backseat, which he unzips and removes its contents. His camera is occasionally blocked by the driver's seat. At the 02:06 mark, Det. Gukelberger and Det. Jangel search the center console, where a wallet is found and searched, in addition to what appeared to be a tobacco leaf, a scale, and other unclear items. At the 02:30 mark, Det. Gukelberger searched underneath the driver's seat. At the 02:48 mark, Det. Gukelberger searches the same bag that was in the rear, recovering a small bag of marijuana. At the 03:34 mark, Det. Gukelberger searched the general area of the back seats, as well as underneath the seat behind the driver's seat and in the pocket behind the driver's seat. At the 04:20 mark, Det. Gukelberger attempts to open the locked trunk. PO Holder goes to the driver's side of the vehicle, reaches inside, and presses the button that unlocks the trunk. Det. Gukelberger and Det. Jangel search the trunk. At the 07:14 mark, Det. Gukelberger searches the driver's seat and center console once again. At the 09:00 mark, PO Holder opens the front hood of the vehicle and Det. Gukelberger flashes his light over the area. At the 09:36 mark, Det. Gukelberger re-enters the driver's side of the vehicle, gathers some documents that were on the passenger seat and placed them on the floor by the seat. He found cash that he placed inside the brown wallet found in the center console. Det. Gukelberger gathers all of the recovered items—the wallet, the scale, the edible marijuana, and the bag of marijuana. At the 10:20 mark, Det. Gukelberger searches through the grey duffle bag once again. When finished, Det. Gukelberger grabs the recovered items and exits the vehicle.

§ 87(2)(b) was not present of this incident and therefore, a statement was not obtained from him.

§ 87(2)(b) § 87(2)(b)'s wife, who was a witness to the incident, testified (BR05) that § 87(2)(b)'s vehicle was parked in an alleyway § 87(2)(b) in Queens. She noticed police officers searching around the vehicle with flashlights. § 87(2)(b) did not smell marijuana or hear loud music near § 87(2)(b)'s vehicle. § 87(2)(b) went inside of her home while the officers continued searching the vehicle. When she returned outside, she observed the officers searching the trunk and hood of the vehicle. The officers also searched through § 87(2)(b)'s wallet, which he left inside of the vehicle. The officers remained by the vehicle for about an hour.

§ 87(2)(e), § 87(2)(f)

Det. Gukelberger searched the entire interior of § 87(2)(b)'s vehicle, including the entire front interior—glove compartment, center console, etc., and all other compartments in the vehicle. Det. Gukelberger conducted a search of the duffle bag in the rear of the vehicle but did not remember specifically what he recovered from the bag. Det. Gukelberger did not recall if Det. Jangel assisted him in searching the vehicle. Det. Gukelberger searched the trunk of the vehicle, but he did not believe anything was recovered from there. Det. Gukelberger recovered marijuana, paraphernalia—including a digital scale, edible THC, and a wallet with § 87(2)(b)'s identification. The detectives returned to the 103rd Precinct with the recovered items, which Det. Gukelberger vouchered for the purposes of safe keeping. The vehicle remained on scene with § 87(2)(b)'s wife. Det. Gukelberger did not independently recall if any other officers were on scene.

PO Holder testified (BR07) that § 87(2)(e)

When he arrived on scene, Det. Gukelberger and Det. Jangel were already searching the vehicle. PO Holder observed a strong odor of burnt marijuana emanating from the vehicle. PO Holder did not observe any other evidence that marijuana was recently smoked in the vehicle, including smoke. PO Holder was not aware of the circumstances that led to the detectives searching the vehicle. PO Holder's only involvement in the search was the opening of the trunk, upon Det. Gukelberger's request—absent a search of the trunk, and the opening and briefly searching of the hood of the vehicle. PO Holder did not search any other area of the vehicle.

According to the Department Advocate's Office, PO Daniel Ward retired from the NYPD on March 31, 2021 (BR08) and Det. Adam Jangel retired on February 1, 2021 (BR09).

§ 87(2)(e), § 87(2)(g)

the vehicle was found between § 87(2)(b) just north of

§ 87(2)(b) where detectives observed an overpowering odor of marijuana emanating from the interior of the vehicle, as well as a grey duffle bag on the rear floorboard. The detectives conferred with legal, after which they subsequently searched the vehicle and vouchered marijuana, paraphernalia, edible THC, as well as a wallet with § 87(2)(b)'s identification (**BR10**) § 87(2)(b).

People v. Orlando, 56 N.Y.2d 441 found that warrantless searches of a stopped or parked vehicle are justified when there is probable cause to believe contraband or evidence of a crime will be found in the vehicle, despite the absence of occupants (**BR12**).

§ 87(2)(e), § 87(2)(f), § 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be **exonerated**.

Given that PO Ward and Det. Jangel have retired from the NYPD, it is recommended that **Allegations C and D** be closed as **miscellaneous—subject retired**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party and victim in one other CCRB complaint (**BR13**):
 - § 87(2)(b)
- Detective Daniel Gukelberger has been a member of service for 12 years. He has been named the subject in four other CCRB complaints and 11 allegations, four which have been substantiated:
 - 201507246 involves substantiated allegations of gun pointed, abuse-other, a stop, and a vehicle search. The CCRB Recommended Command Discipline B and the NYPD imposed Command Discipline A.
 - § 87(2)(g)
- Police Officer James Holder has been a member of service for 10 years. He has been named the subject in 11 other CCRB complaints and 40 allegations, six which have been substantiated:
 - 201502028 involves a substantiated allegation of discourtesy-word. The CCRB recommended formalized training and the NYPD imposed command level instructions.
 - 201804023 involved substantiated allegations of a frisk and vehicle search. The CCRB recommended formalized training and the NYPD imposed formalized training.
 - 201904264 involved two substantiated allegations of failure to provide RTKA card. CCRB recommended command level instructions and the NYPD imposed instructions.
 - 201909887 involved a substantiated allegation of a search of person. The CCRB recommended formalized training. The NYPD's imposition was not noted.
 - § 87(2)(g)
- Police Officer Daniel Ward retired from the NYPD on March 31, 2021. Prior to his retirement, he was named as the subject in four other CCRB complaints and seven allegations, none of which were substantiated.
- Detective Adam Jangel retired from the NYPD on February 1, 2021. Prior to his retirement,

he was named as the subject in six other CCRB complaints and 10 allegations, none of which were substantiated.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) did not provide a response when offered mediation.
- On January 14, 2021, the Office of the New York City Comptroller confirmed that § 87(2)(b) has not filed a notice of claim regarding this incident (**BR15**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 10

Investigator:	<u>Jessica Russo</u>	<u>Investigator Jessica Russo</u>	<u>01/10/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Eric Rigie</u>	<u>IM Eric Rigie</u>	<u>1/10/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date